

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

NANCY PRIOR, *Complainant*

v.

AMOOV GROUP; FREIGHTLEAD LLC; AND AIR 7 SEAS
TRANSPORT LOGISTICS, INC., *Respondents*.

DOCKET NO. 26-02

Served: June 30, 2026

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

**ORDER DENYING RESPONDENT FREIGHTLEAD LLC’S MOTION TO DISMISS WITHOUT
PREJUDICE AND DIRECTING COMPLAINANT TO FILE AMENDED COMPLAINT**

I. Background and Legal Standard

On January 14, 2026, the Office of the Secretary issued a Notice of Filing of Complaint and Assignment, noting that Complainant Nancy Prior had filed a complaint alleging that Respondents, alleged to be ocean transportation intermediaries, had violated 46 U.S.C. § 41102(c) by refusing to provide a master bill of lading, and withholding the release of her shipment due a dispute amongst themselves. On February 6, 2026, Complainant filed an amended complaint, which she combined with a status report. Dkt. 7. On March 14, 2026, Respondent Freightlead LLC filed a motion to dismiss combined with an opposition to Complainant’s motion for entry of default. Dkt. 14. The motion argues that the amended complaint does not allege facts sufficient to show that Freightlead acted as an ocean common carrier or ocean transportation intermediary with respect to Complainant’s shipment, as required for liability under 46 U.S.C. § 41102(c). 46 C.F.R. § 545.5.

II. Discussion

Although the Commission’s Rules of Practice and Procedure (“Rules”) do not explicitly provide for motions to dismiss, Rule 12 states that the Federal Rules of Civil Procedure (“FRCP”) will be followed in instances that are not covered by the Rules, to the extent that application of the FRCP is consistent with sound administrative practice. 46 C.F.R. § 502.12. Freightlead’s motion is premised on the argument that the Complainant has failed to state sufficient facts to plausibly allege that Freightlead acted as an ocean common carrier or ocean transportation intermediary. Mot. to Dismiss 6. Under the plausibility standard, the Commission will dismiss a claim if the complainant fails to plead “enough facts to state a claim for relief that is plausible on its face.” *Maier Terminals, LLC v. the Port Auth. of New York and New Jersey*, Docket No. 12-02, 2015 WL 9426189, at *12 (FMC Dec. 18, 2015) (*quoting Bell Atl. Corp. v.*

Twombly, 550 U.S. 544, 570 (2007)). Facial plausibility requires factual content that allows a court “to draw the reasonable inference that the defendant is liable for the misconduct alleged.” *Id.* (quoting *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009)). The factual content includes the facts alleged in the complaint, documents attached to or incorporated by reference in the complaint, and matters subject to official notice (including judicially noticeable facts and “technical or scientific facts within the general knowledge of the Commission”). *Id.* at *41 n.1 (citing *Farah v. Esquire Magazine*, 736 F.3d 528, 534 (D.C. Cir. 2013); *Chambers v. Time Warner, Inc.*, 282 F.3d 147, 153 (2d Cir. 2002); 46 C.F.R. § 502.226(a)).

To allow the necessary inferences to be reasonably drawn, the complaint’s factual allegations must be more than speculative, and must “nudge claims across the line from conceivable to plausible.” *Id.* at *12 (quoting *Elemary v. Holtzmann*, 533 F. Supp. 2d 116, 130 (D.D.C. 2008)). The plausibility standard is not a probability requirement – while actual proof of the alleged facts may be improbable, and recovery may seem remote and unlikely, the standard does not require the pleading of specific evidence or extra facts beyond what is needed to make the claim plausible. *Id.*

While this standard does not require detailed factual allegations, it does require more than labels, conclusions, or a formulaic recitation of the elements of a cause of action. *Id.* The Commission need not accept as true legal conclusions or draw inferences that are not supported by the allegations. *Id.* Legal conclusions can provide the framework of the complaint, but they must be supported by factual allegations. *Id.* at *13. The factual allegations needed to reach plausibility will vary depending on the complexity of the case and require the presiding officer to draw on judicial experience and common sense. *Id.*

Freightlead argues that while it is an FMC-licensed non-vessel operating common carrier (NVOCC), it was not acting in that capacity with respect to Complainant’s shipment. Mot. to Dismiss 8. In support of this argument, Freightlead lists a series of facts, supported by a declaration, describing its activities with respect to the shipment. Mot. to Dismiss 3-4. Freightlead claims that these facts demonstrate that it acted as a destination agent only, and this would seem to suggest that it is making a factual attack on the complaint in the nature of a motion for summary judgment. But Freightlead explicitly argues that the *Twombly-Iqbal* “plausibility” standard should apply and has labeled its motion as one to dismiss under FRCP 12(b)(6). Mot. to Dismiss 6.

In her opposition to the motion to dismiss, Complainant sets forth facts in support of her contention that Freightlead was not merely acting as a destination agent. Opp’n to Mot. to Dismiss 2-3. But these facts do not appear in the amended complaint.

It is difficult to evaluate the sufficiency of the amended complaint because it does not restate or incorporate by reference any of the allegations in the original complaint. Instead, it intersperses amendments, including a change to the reparations request and the request for oral hearing, with a status report. Dkt. 7. In addition, the amendment is not verified.

Given the lack of clarity in both the motion to dismiss and the amended complaint, I will deny the motion without prejudice and instruct Complainant to file a second amended complaint. Amendments to a complaint are permitted at the discretion of the presiding officer. 46 C.F.R. §

502.66(a). The presiding officer may direct a party to state its case more fully and in more detail by way of amendment. *Id.* In the interest of clarifying the complaint and ensuring that it conforms with the Commission's Rules, complainant must file an amended complaint as instructed in this order.

Complainant has identified 46 U.S.C. § 41102(c) as the basis for her complaint. The statute prohibits a common carrier, marine terminal operator, or ocean transportation intermediary from failing to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property. To establish a successful claim for reparations under § 41102(c), a complainant must establish five elements:

- (a) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (b) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (c) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (d) The practice or regulation is unjust or unreasonable; and
- (e) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.5. In the amended complaint, Complainant must set forth the facts establishing her claim in more detail to allow Respondents to reply appropriately. In addition, the amended complaint must stand on its own. That is, it must not be combined with a status report or other document, and it must include all required elements of an original complaint. 46 C.F.R. § 502.62(a)(3). This includes verification. 46 C.F.R. § 502.66(c).

If Freightlead decides to refile its motion to dismiss, it must similarly stand on its own, and not be combined with another filing, such as an opposition to, as happened here. If Freightlead intends to make a factual attack on the Commission's jurisdiction, or otherwise challenge Complainant's allegations with reference to facts outside of the pleadings, it must refer to the applicable rules and cite appropriate authorities.

Amended pleadings are normally served in the same manner as the original pleadings they amend, with the exception of amended complaints, which may be served directly by a complainant if authorized by the presiding officer. In this case, since Respondents Air 7 Seas and Freightlead LLC have appeared, Complainant must file the amended complaint and serve them directly. AMOOV Group has not appeared, and the Office of the Secretary is requested to serve the amended complaint to AMOOV Group in accordance with 46 C.F.R. § 502.113(a).

III. Order

It is hereby **ORDERED** that Complainant file an amended complaint, as instructed above, no later than **July 14, 2026**; it is further

ORDERED that Complainant will serve the amended complaint, to be titled “Second Amended Complaint,” directly on Respondents Freightlead LLC and Air 7 Seas Transport Logistics, Inc.; it is requested that the Office of the Secretary serve the second amended complaint on AMOOV Group; it is further

ORDERED that answers to the amended complaint will be due no later than **July 28, 2026**; it is further

ORDERED that Freightlead’s motion to dismiss is **DENIED** without prejudice.

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Alex M. Chintella
Administrative Law Judge